

Court No. - 32

Case :- WRIT - C No. - 41375 of 2018

Petitioner :- Rajesh Kumar Agarawal

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Chandra Prakash Tiwari, Lavkush Kumar Bhatt

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta, J.

Hon'ble Mrs. Manju Rani Chauhan, J.

This writ petition has been filed, inter alia, for the following reliefs:

"i) Issue a writ, order or direction in the nature of Mandamus directing the respondent No. 2 to take original electric bill as electricity reading meter shown, dues amount to the petitioner in an easy installment."

Heard learned counsel for the petitioner, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the Respondent No. 2, Executive Engineer/appropriate authority for redressal of his grievance within 10 days from today, his application may be considered and decided by the said authority in accordance with law expeditiously preferably within 15 days from the date of receipt of a certified copy of this order, copy of the writ petition and its annexures by a speaking order after giving opportunity of hearing to the petitioner.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 14.12.2018

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